CHAUKE MBANGE NDANGARIRO (PRIVATE) LIMITED

versus

MARBLE MPOFU

and

THE PROVINCIAL MINING DIRECTOR MIDLANDS PROVINCE (NO)

and

THE MINISTER OF MINES AND MINING DEVELOPMENT (NO)

and

THE OFFICER COMMANDING MIDLANDS PROVINCE CID MINERALS FLORA AND FAUNA UNIT ZIMBABWE REPUBLIC POLICE (NO)

IN THE HIGH COURT OF ZIMBABWE
CHIVAYO J
BULAWAYO, 10 November 2025, 20 February 2026

Urgent Chamber Application for Interdict

C S Ncube with K. Nxumalo, for the applicant
S Jukwa, for the second ,third and fourth respondents
No appearance for the first respondent

CHIVAYO J: The applicant filed an urgent chamber application for an interdict on 6 November 2025, seeking an order in the following terms:

> "**TERMS OF THE FINAL ORDER SOUGHT**
>
> THAT you show cause to this Honourable Court why a final order should not be made in
>
> the following terms:
>
> 1. The Provisional order is hereby confirmed.
> 2. That 1st Respondent and her agents, assignees, workers, partners and any other persons illegally occupying, mining and extracting gold ore in a way or the other at a Mining claim known as Aurora 31 under registration Number 26131, be and are hereby permanently interdicted from illegally occupying, mining and extracting gold ore in one way or the other at the Mining claim known Aurora 31 under registration Number 26131 and they are further permanently interdicted from alienating, disposing, or processing individually or through a

partnership with an investor or any other person any gold ore or sands (dump) situate at Aurora 31 under registration Number 26131 without Applicant's consent and authority.

3. ln the event of the 1st Respondent's failure or her agents, assignees, workers, partners and any other persons, failure to abide by the terms of this order, within 24 hours of service of this order, the Sheriff of the High Court of Zimbabwe with the assistance of the 4th Respondent shall assist Applicant in the enforcement of terms of the Order of this Court.
4. That the 1st Respondent be and are hereby ordered to jointly bear the costs of this application at Attorney and client scale.

INTERIM RELIEF GRANTED

That pending the return date or the full determination of the Applicant, in the interim, is granted the following relief:

a. That 1st Respondent and her agents, assignees, workers, partners and any other persons illegally occupying, mining and extracting gold ore in a way or the other at a Mining claim known as Aurora 31 under registration Number 26131, be and are hereby temporarily interdicted from illegally occupying, mining and extracting gold ore in one way or the other at the Mining claim known Aurora 3'l under registration Number 26131 and they are further temporarily interdicted from alienating, disposing, or processing individually or through a partnership with an investor or any other person any gold ore or sands (dump) situate at Aurora 31 under registration Number 26131 without Applicant's consent and authority.
b. ln the event of the 1st Respondent's failure or her agents, assignees, workers, partners and any other persons, failure to abide by the terms of this order, within 24 hours of service of this order, the Sheriff of the High Court of Zimbabwe with the assistance of the 4th Respondent shall assist Applicant in the enforcement of terms of the Order of this Court.

SERVICE OF PROVISIONAL ORDER

Service of this Provisional Order and the supporting Urgent chamber application may be validly effected by the Sheriff or Applicant's legal practitioners and they are hereby granted leave to serve this Provisional Order upon the Respondent(s) or any responsible person(s) at the addresses of the Respondents."

[1] The Urgent Chamber application was set down for hearing on the 10th of November 2025. It was initially set for a virtual hearing at 1400hrs; however, owing to administrative arrangements, the matter was set down for 1200hrs for a physical hearing. When the matter was set down for a physical hearing through the Integrated Electronic Case Management System (IECMS) for 1400hrs, the parties were notified through the online notifications in the IECMS platform. The notification is immediate. When the matter was rescheduled for a

physical hearing at 1200hrs, the parties were also immediately notified through the IECMS platform.

[2] The applicant served the Urgent Chamber Application for Interdict on the first respondents on the 7th of November 2025 at 0930hrs, and a signature and Identity Number indicating that one Marble Mpofu accepted the Urgent Chamber Application is reflected on the certificate of service. The second respondent was served on the 6th of November 2025 at 1407hrs, which application was received by one D. Mahachi who accepted service of the Urgent Chamber Application on behalf of the second respondent. The third respondent was served on the 7th of November 2025 at 1400hrs and one Chakanyuka accepted service on behalf of the third respondent. The fourth respondent was served on the 6th of November 2025 at 1425hrs and one Makwara accepted service on behalf of the 4th respondent. The certificate of service in respect of the services, which were all done physically, is filed of record to that effect.

[3] On the 10th day of November and at 1200hrs when the matter was heard before me, there was no Notice of Opposition filed of record. The applicant's counsels, *Mr. C.S. Ncube* and *Mr. K. Nxumalo*, were in attendance, as well as *Mr. S. Jukwa* for the 2nd to 4th Respondents.

[4] The Provisional Order was granted and uploaded on IECMS soon after the hearing, and then stamped by the Registrar at 1328hrs. At that time, no Opposition had been filed of record. It is only after the Provisional Order was granted that a letter was filed by the first respondent's legal practitioners, indicating that they had filed a Notice of Opposition. It is trite that, at that point, the court was *functus officio* with regards to the Provisional Order which had already been granted prior to first respondent's opposition.

Background

[5] The applicant is Chauke Mbange Ndangariro (Pvt) Ltd, a company represented by Rangani Chauke, who is the applicant's Chief Executive Officer and director, and is duly authorized by way of a company resolution to depose to the founding affidavit filed of record. The first respondent is Marble Mpofu, a female adult who has the capacity to sue and be sued at law. The second respondent is The Provincial Mining Director, Midlands Province, cited herein in his official capacity and is responsible for the administration and regulation of all mining activities and operations within the Midlands Province in terms of the Mines and Minerals Act [*Chapter 21:01*]. The third respondent is the Minister of Mines and Mining Development cited herein in his official capacity and is responsible for the administration of all mining activities and operations within this country. The fourth respondent is the Officer Commanding Midlands Province –CID Minerals Flora and Fauna Unit Zimbabwe Republic Police, Gweru, cited in his capacity as the office in the executive arm of this Republic, with a constitutional mandate to administer Police operations in and around the Midlands Province in its preservation of peace, security, law and order in his area of jurisdiction.

[6] The applicant is the registered owner and holder of mining rights in respect of a mining claim known as Aurora 31 under registration Number 26131, and a certificate of registration is attached of record as proof. The applicant submits that the first respondent has been conducting illegal mining activities at their mining location without a certificate of registration for the mine, a tribute agreement to mine the location, and is doing so without the authority of the applicant, which is the lawful owner of the mine at issue.

[7] The applicant submits that it and the first respondent have been taking each other to court over the issue. However, the key dispute resolution, the applicant submits, was the recent deliberation and outcome by the Provincial Mining Director, who was tasked with determining the dispute between the parties. The applicant alleges that both parties made submissions before the second respondent, and the second respondent issued his ruling on the 23rd of October 2025, ruling in favour of the applicant. The ruling by the second respondent, which is filed of record, states that the mine at issue is registered in the name of the applicant and that the first respondent does not have any authority in fact and in law to conduct mining activities on the

mining location.

[8] Pursuant to the finding by the second respondent, the second respondent issued a letter to the fourth respondent requesting fourth respondent to investigate the alleged illegal mining activities by first respondent at the Aurora 31 mine. The letter is also filed of record.

[9] The applicant further submits that, following the letter issued to the fourth respondent, the applicant has been following up with the office of the fourth respondent to act on the issue, but this has not yielded any positive results. The applicant argues that it has waited patiently for the legal process to be completed, resulting in the resolution, but despite the resolution and instruction for the first respondent to stop her illegal mining activities, she has not done so. The applicant alleges that the first respondent has continued with her illegal conduct, prejudicing the applicant by illegally extracting gold ore on the mining site and working on the gold ore dump (sands) that are at Aurora 31. The applicant alleges that the first respondent has established a gold milling and processing plant at another mining site known as Tortoise 14, and that the first respondent is shipping gold ore and dump (sands) from Aurora 31 to the Tortoise 14 mine for processing.

[10] The applicant submits that the matter is urgent as gold is a finite resource which must be protected from the first respondent's unlawful conduct, failure to which the applicant will suffer irreparable harm. A certificate of urgency was filed of record in support of this urgent chamber application. The applicant further submits that there is no other satisfactory remedy other than the granting of an order interdicting the first respondent from her unlawful conduct.

Submissions by the parties

[11] When the parties appeared in chambers, the applicant maintained its submissions as per its founding affidavit, in which the facts thereto are well detailed above. The counsel for the second to fourth respondents was not opposed to the interim relief sought by the applicant.

The applicable law

[12] The requirements for an application for an interdict are well established in our law. The requirements are well enunciated in the case of Swimming *Pool &*

Underwater Repair (Private) Limited & Ors v *Jameson Rushwaya & Anor* S-32-12, wherein the Supreme Court quoted with approval the case of *Setlogelo* v *Setlogelo* 1914 AD 221, when it was held that:

> "The requirements for an interdict as set out in *Setlogelo v Setlogelo* 1914 AD 221 are –
>
> (a) A *prima facie* right even if it is open to doubt.
> (b) An infringement of such right by the respondent or a well-grounded apprehension of such an infringement.
> (c) A well-grounded apprehension of irreparable harm to the applicant.
> (d) The absence of any other satisfactory remedy.
> (e) That the balance of convenience favours the granting of the interlocutory interdict."

[13] The applicant established that it is the owner of the mine Arora 31, as supported by a certificate of registration filed of record. This certificate was not challenged by the third respondent, the ministry responsible for issuing the certificate. The certificate of registration satisfies the requirement that the applicant has a *prima facie* right in respect of the mine.

[14] The applicant also established a case of apprehension of its rights to the mine, with letters from the second respondent indicating that the first respondent is not a director of the applicant, and that she is conducting illegal mining activities at the mine. This satisfies the requirement of a well-grounded apprehension of an infringement. It also becomes apparent that there is irreparable harm that the applicant will continue to suffer loss of a finite resource which may be depleted if the first respondent's actions are not interdicted.

[15] The applicant has made efforts to try to resolve the dispute between it and the first respondent. This is supported by the fact that the applicant approached the office of the second respondent, which is responsible for resolving mining disputes where the mine Arora 31 is situate. The second respondent determined that the applicant was the registered owner of Arora Mine, and that the first respondent had no lawful authority to conduct mining activities at the applicant's mine. The second respondent also wrote to the fourth respondent's office to assist and investigate the actions of the first respondent. However, this has not yielded any results according to the applicant's submissions. It follows that, at this stage, the applicant has no other

satisfactory remedy other than to approach this court on an urgent basis. This court finds that the matter is urgent, as gold is a finite resource that may be depleted if the ordinary course of action is followed by the applicant.

[16] It is of paramount importance to note that, at this stage, the balance of convenience favours the granting of the interim relief sought, as there is great potential of irreparable harm that the applicant will suffer if the interim relief sought is not granted.

[17] Accordingly, this court found merit in the applicant's case, and on the 10th of November 2025 granted a provisional order in terms of r 60(11) (a) of the High Court Rules, 2021, as follows:

TERMS OF FINAL ORDER SOUGHT

That you show cause to this Honourable Court why a final order should not be made in the following terms –

1. The Provisional order is hereby confirmed.
2. That first respondent and her agents, assignees, workers, partners and any other persons illegally occupying, mining and extracting gold ore in a way or the other at a Mining claim known as Aurora 31 under registration Number 26131, be and are hereby permanently interdicted from illegally occupying, mining and extracting gold ore in one way or the other at the Mining claim known Aurora 31 under registration Number 26131 and they are further permanently interdicted from alienating, disposing, or processing individually or through a partnership with an investor or any other person any gold ore or sands (dump) situate at Aurora 31 under registration Number 26131 without Applicant's consent and authority.
3. ln the event of the first respondent's failure or her agents, assignees, workers, partners and any other persons, failure to abide by the terms of this order, within 24 hours of service of this order, the Sheriff of the High Court of Zimbabwe with the assistance of the 4th Respondent shall assist Applicant in the enforcement of terms of the Order of this Court.
4. That the first respondent be and are hereby ordered to jointly bear the costs of this application at Attorney and client scale.

INTERIM RELIEF GRANTED

Pending determination of this matter, the Applicant is granted the following relief -

a. That first respondent and her agents, assignees, workers, partners and any other persons illegally occupying, mining and extracting gold ore in a way or the other at a Mining claim known as Aurora 31 under Registration Number 26131, be and are hereby interdicted from illegally occupying, mining and extracting gold ore in one way or the other at the Mining claim known Aurora 31 under registration Number 26131 and they are further interdicted from alienating, disposing, or processing individually or through a partnership with an investor or any other person any gold ore or sands (dump) situate at Aurora 31 under registration Number 26131.
b. The first respondent must leave the mining site and any minerals in whatever form within 72 hours under the supervision of the Sheriff of the High Court of Zimbabwe, with the assistance of Zimbabwe Republic Police.

SERVICE OF PROVISIONAL ORDER

Service of this Provisional Order and the supporting Urgent chamber application may be validly effected by the Sheriff or Applicant's legal practitioners and they are hereby granted leave to serve this Provisional Order upon the Respondent(s) or any responsible person(s) at the addresses of the Respondents.

CHIVAYO J: - ……

Ndlovu Mehluli and Partners, applicant's legal practitioners.
Civil Division of the Attorney General, second, third and fourth respondents' legal practitioners.